

disputes UF #44 based on an objection to Rocha's declaration to UF #44. However, Rocha is the current Assistant General Manager for Costco. (Rocha Dec. ¶3.)

The only evidence Plaintiff presents is Costco's admission in discovery responses that "there have been two other claims of incidents occurring between registers within the last 5 years." (Turlington Decl., Exh. 2, Costco's Verified Responses to Plaintiff's Special Interrogatories, No. 11.) However, this evidence does not rebut Costco's evidence that an inspection prior to Plaintiff's fall occurred and no dangerous condition was detected. Plaintiff fails to present any other evidence.

Plaintiff's Evidentiary Objections to Claudia Rocha Declaration numbers 1-10
OVERRULED.

Plaintiff's Evidentiary Objections to Brad Rutledge Declaration numbers 11-15
OVERRULED.

Defendants' Request for Judicial Notice of Exhibit 1, Plaintiff's Complaint, GRANTED.

Defendants' Motion for Summary Judgment GRANTED.

Defendant to submit a revised Proposed Order and a Proposed Judgment.

Jury Trial confirmed for August 7, 2026 pending submission of the Proposed Judgment.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL SPECIAL INTERROGATORIES FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT, SET ONE, AND FOR SANCTIONS BY CARISSA CARRERA

Tentative Ruling: No tentative ruling. Motion to Compel is continued.

The hearing on the Motion to Compel is continued to July 30, 2026. The parties are ordered to **meet and confer via in person, teleconference or phone** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the motion. As part of the meet and confer process, Plaintiff shall identify the specific items that it believes are subject to the motion and identify with legal support the basis of the deficiencies. Defendant shall provide legal support for their position that the responses are legally sufficient or, in the alternative, how the responses may be amended to cure any legal insufficiency.

After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- (1) Plaintiff vacate the hearing on the motion to compel;
- (2) The Parties file with the court a joint declaration stating the parties have agreed that Defendant will file amended responses before the date set forth above; or

(3) The Parties file with the court a joint declaration stating the means by which the parties met and conferred and identifying the specific objections in the motion and supporting memorandum of points and authorities that the parties were unable to resolve.

The court will not accept further briefing.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL REQUEST FOR ADMISSIONS FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT TO PLAINTIFF'S REQUEST FOR ADMISSION, SET ONE, NO. 47 AND FOR SANCTIONS IN THE AMOUNT OF \$897.50 BY CARISSA CARRERA

Tentative Ruling: No tentative ruling. Motion to Compel is continued for parties to properly meet and confer as directed above.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT, SET ONE, AND FOR SANCTIONS BY CARISSA CARRERA

Tentative Ruling: No tentative ruling. Motion to Compel is continued for parties to properly meet and confer as directed above.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL ENRIQUE TIRA TO PRODUCE DOCUMENTS, AND FOR SANCTIONS IN THE AMOUNT OF \$3,429.75

Tentative Ruling: Discovery may be obtained from a nonparty by oral deposition, written deposition, or a deposition for production of business records. (CCP §2020.010.) “[T]he process by which a nonparty is required to provide discovery is a deposition subpoena.”